

TRAI (Levy of Fees on Service Rendered, Petitions, Miscellaneous Applications and Copy of Judgments) Regulations, 1999

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Union of India - Act

TRAI (Levy of Fees on Service Rendered, Petitions, Miscellaneous Applications and Copy of Judgments) Regulations, 1999

UNION OF INDIA

India

TRAI (Levy of Fees on Service Rendered, Petitions, Miscellaneous Applications and Copy of Judgments) Regulations, 1999

Rule

TRAI-LEVY-OF-FEES-ON-SERVICE-RENDERED-PETITIONS-MISCELLANEOUS-APPLICATIONS-AND-COPY-OF-JUDGMENTS-REGULATIONS-1999 of 1999

Published on 24 March 1999

Commenced on 24 March 1999

[This is the version of this document from 24 March 1999.]

[Note: The original publication document is not available and this content could not be verified.]

TRAI (Levy of Fees on Service Rendered, Petitions, Miscellaneous Applications and Copy of Judgments) Regulations, 1999

Published vide Notification Gazette of India, Extra., Part 3, Section 4, dated 24.3.1999.

1714.

Notification No. 5-5/98-TRAI (A&R), dated March, 22, 1999. - In exercise of the powers conferred upon it under clause

(fi of sub-section (2) of Section 36 read with Clause (P) of sub-section (1) of Section 11 of the Telecom Regulatory Authority of India Act, 1997, the Authority hereby makes the following regulations:-

Section I

1.

Short title, extent and commencement.

- (i) This regulation shall be called the TRAI (Levy of Fees on Service rendered, Petitions, Miscellaneous Applications and Copy of Judgments) Regulations, 1999.

(ii)

This regulation shall cover the levy of fees to be charged on service rendered on filing of petitions, miscellaneous applications and for the issue of certified copy of judgments.

(iii)

This regulation shall come into effect from the date of its publication in the Gazette of India.

Section II

2.

Definitions.

- In this regulation, unless the context otherwise requires,

(a)

`Act' means the Telecom Regulatory Authority of India Act, 1977.

(b)

`Authority' means the Telecom Regulatory Authority of India.

(c)

`Petitioner' means any person, service provider or any member representing a group of consumers making an application or petition in respect of matters under the Act.

(d)

Words and expressions used in this order and not defined but defined in the Act shall have the same meaning respectively assigned to them in the Act.

Section III

General

3.

Amendment and Annulment.

- The Authority may, from time to time, modify amend or annul this Regulation either in whole or in part.

4.

Interpretation.

- In the event of any dispute regarding interpretation of any provisions of this regulation, the decision of the Authority shall be final.

Section IV

5.

Levy of Fees.

- The Authority shall levy charges as fee on petitions and applications at the following rates:

(i)

Filing of Petition

Rs. 5000

(Rupees five thousand).

(ii)

Filing of Miscellaneous Application

Rs. 1000

(Rupees one thousand)

(iii)

The Fee for issue of Certified copy of any order of the Authority

Rs. 3

(Rupees three) (per page).

(iv)

Authority shall determine the fee for a particular service sought from it on a case to case basis.

(v)

The fee, so determined, will be intimated to the concerned party before the Authority takes up the task of providing such a service.

6.

The Bench, constituted for hearing a petition may, however, at its discretion, either reduce or waive the fee payable for filing of a Petition or a Miscellaneous Application.

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